

Even though the allegations are made on a Judicial Council form complaint, they are subject to challenge if the form is not filled out completely and correctly, i.e., they are supposed to have the forms for causes of action attached. The complaint fails to plead facts pertaining to any element of any cause of action, e.g. that defendant owed a legal duty and breached said duty. Accordingly, the demurrer is sustained for those reasons.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/19/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Patterson v. Soler et al.***
Superior Court Case No. 25CECG02748

Hearing Date: May 20, 2026 (Dept. 502)

Motion: Motion for Good Faith Settlement Determination

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/19/26
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